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LINE 5

24-CIV-02984

GONGQINGCHENG PANHUI INVESTMENT MANAGEMENT PARTNERSHIP VS YIHUA ZHU

GONGQINGCHENG PANHUI INVESTMENT MANAGEMENT PARTNERSHIP
YIHUA ZHU

BRETT RAMSAUR
GABRIEL COLWELL

DEFENDANTS YIHUA ZHU AND YUECHEN YANG'S JOINT MOTION TO QUASH PLAINTIFF'S DEPOSITION SUBPOENAS FOR PRODUCTION OF BUSINESS RECORDS TO CITIBANK N.A.

TENTATIVE RULING:

Defendant Yihua Zhu's and Yuenchang Yang's (collectively, defendants) "Joint Motion to Quash Plaintiffs' Deposition Subpoenas for Production of Business Records to Citibank N.A.," filed July 29, 2026, is GRANTED. (Code Civ. Proc., § 1987.1.)

Background. Plaintiff has filed three related cases in this Court; the other two cases are 23CIV02886 (*Qongqingcheng Panhui Invest. Mgmt. P'ship v. Lihue Bai, et. al.*) and 23CIV02884 (*Qongqingcheng Panhui Invest. Mgmt. P'ship v. Jiman Zhu, et. al.*)

The two named defendants in the present case, Yihua Zhu and Yuechen Yang, are alleged to be a married couple. As alleged, in 2020, plaintiff obtained a foreign judgment in China against defendant Yihua Zhu's parents, Jiman Zhu and Lihui Bai (the Parents), who are now foreign money judgment debtors. Plaintiff thereafter filed three lawsuits in this court, including this case, seeking to collect on the foreign money (China) judgment. Plaintiff's complaint in this case alleges that the two Parents (Jiman Zhu and Lihui Bai), both prior to and after entry of the 2020 foreign money judgment, conspired with their son (defendant Yihua Zhu) and his wife (defendant Yuechen Yang) to transfer the Parents' funds to defendants as part of a conspiracy/scheme to render the Parents insolvent and to avoid the Parents' creditors. The complaint alleges that the Parents transferred their funds to defendants, for little or no consideration, which were then used to purchase several properties in the United States. (See Complt., generally.)

In July 2026, plaintiff served two subpoenas to third party Citibank N.A. (see July 29, 2026 Cochran Decl., Ex. D-E), seeking production of a very broad range of banking/financial records pertaining to the two defendants, the two Parents, and twelve (12) entities with which defendants and the Parents presumably have had some association. Plaintiff's counsel has provided a declaration stating that Lihui Bai, Yihua Zhu, and two of entities identified in the subpoenas hold (or held) accounts at Citibank. (Aug. 5, 2026 Rongping Wu Decl., ¶ 12.)

By this motion, defendants move to quash the two subpoenas in their entirety, pursuant to Code of Civil Procedure section 1987.1.

Since plaintiffs substantively opposed the motion, the court decides the motion Plaintiff's Opposition argues that the motion to quash should be denied on procedural grounds because

defendants served it on July 29, 2026, fourteen (14) court days prior to the August 18, 2026 hearing, in violation of Code of Civil Procedure section 1005, subdivision (b). However, after raising the issue, plaintiff has substantively responded, has not demonstrated any significant prejudice, has not requested a continuance of the hearing date, and plaintiff has had a full opportunity to be heard. Plaintiff has waived the defect. “It is well settled that the appearance of a party at the hearing of a motion and his or her opposition to the motion on its merits is a waiver of any defects or irregularities in the notice of the motion.” (*Tate v. Superior Court* (1975) 45 Cal.App.3d 925, 930.) If, however, plaintiff can show prejudice and needs additional time to respond, it shall properly contest the tentative ruling, demonstrate the prejudice and the court will provide additional time to respond.

Defendants’ non-compliance with Code of Civil Procedure section 1985.3, subdivision (g) is not grounds to deny the motion. Plaintiff also argues that the motion should be denied on procedural grounds for non-compliance with Code of Civil Procedure section 1985.3, subdivision (g), which states, in part:

(g) Any consumer whose personal records are sought by a subpoena duces tecum and who is a party to the civil action in which this subpoena duces tecum is served may, prior to the date for production, bring a motion under Section 1987.1 to quash or modify the subpoena duces tecum. Notice of the bringing of that motion shall be given to the witness and deposition officer at least five days prior to production. The failure to provide notice to the deposition officer shall not invalidate the motion to quash or modify the subpoena duces tecum but may be raised by the deposition officer as an affirmative defense in any action for liability for improper release of records.

Plaintiff notes that the subpoenas called for a July 17, 2026 production date, and that defendants did not file and serve this motion to quash until July 29, 2026. The court, however, does not find this non-compliance as requiring denial of the motion, given the statute’s express statement that “[t]he failure to provide notice to the deposition officer shall not invalidate the motion to quash or modify the subpoena duces tecum ...”; see also *Slagle v. Superior Court* (1989) 211 Cal.App.3d 1309, 1312 (“Nothing in the procedure set forth above suggests that a court lacks jurisdiction to consider a motion to quash if it is brought after the date set forth in the subpoena for production”).

Further, defendants state that this motion to quash was served on Citibank on July 15, 2026 (July 29, 2026 Cochran Decl., ¶ 4), and that Citibank has not produced any documents in response to the subpoenas, and even requested that defendants file a motion to quash to preserve their objections. (Reply at p. 3.)

Plaintiff has not established that the subpoenas were properly served on Citibank. Defendants argue that Code of Civil Procedure section 2020.220 requires that plaintiff personally serve Citibank with the subpoenas, and that because plaintiff merely emailed the subpoenas to Citibank, and has not provided evidence of any agreement by Citibank to accept service by email, service was defective. Plaintiff, in response, argues that § 2020.220 only requires personal service of subpoenas on California residents, and that Citibank is not a California resident.

Plaintiff also argues that it served the subpoenas via email to an email address purportedly agreed to by Citibank, and thus, that plaintiff has complied with Citibank's own requirements for service. Plaintiff further argues that Citibank has not objected to service, and therefore, defendants lack any basis to object to service.

Plaintiff has not established proper service of the subpoenas on Citibank.

Although not raised by defendants and not a reason for granting the motion, the court notes that plaintiff states that Citibank is not a California resident (the court is not deciding whether Citibank is or is not subject to a California subpoena), but if in fact Citibank is not a California resident, then plaintiff may need to comply with the Interstate and International Depositions and Discovery Act (UIDDA). (See Code Civ. Proc., §§ 2029.100-2029.900.)

The court bases its decision on the fact that plaintiff appears to concede that it only emailed the subpoenas to Citibank and email service is not sufficient. Code of Civil Procedure section 2020.220 provides that "Any person may serve the subpoena by personal delivery of a copy of it, as follows ..." For an organization, it then identifies the persons to whom personal delivery may be made. Section 2020.220, subdivision (b) addresses the method of personal delivery, and section 2020.220, subdivision (c) separately addresses what personal service accomplishes when the deponent is a California resident. Service of a subpoena must be done personally. (*In re Marriage of Moore* (2024) 102 Cal.App.5th 1275, 1288–1289; *Target National Bank v. Rocha* (2013) 216 Cal.App.4th Supp. 1, 7–8.)

Further, even assuming personal service on Citibank was not necessarily required, plaintiff provides no evidence that Citibank agreed to accept service by email. The fact that plaintiff has communicated with Citibank regarding the subpoenas via email (see Cochran Decl., Ex. C) does not establish that Citibank agreed to accept service by email. (*In re Marriage of Moore, supra*, 102 Cal.App.5th at p. 1289.) Notably, defendants' moving papers pointed out the lack of evidence that Citibank agreed to accept service by email, yet plaintiff's Opposition papers still provided no evidence of any such agreement.

Plaintiff, therefore, has not established that the subpoenas were properly served on Citibank.

The court also rejects plaintiff's contention that defendants, who are consumers directly impacted by the subpoenas, cannot object to improper service on Citibank. Plaintiff provides no authority supporting this contention.

Additionally, and independently, plaintiff has not shown that it served a notice to consumer on either Jiman Zhu and Lihui Bai. The subpoenas seek production of virtually all documents relating to any banking/financial account held in the name of third parties (the Parents) Jiman Zhu and Lihui Bai, but the court sees no evidence that a Notice to Consumer was served on either Jiman Zhu and Lihui Bai. Code of Civil Procedure section 1985.3, subdivision (b) states, in part:

(b) Prior to the date called for in the subpoena duces tecum for the production of personal records, the subpoenaing party shall serve or cause to be served on the consumer whose

records are being sought a copy of the subpoena duces tecum, of the affidavit supporting the issuance of the subpoena, if any, and of the notice described in subdivision (e), and proof of service as indicated in paragraph (1) of subdivision (c). This service shall be made as follows:

- (1) To the consumer personally, or at his or her last known address, or in accordance with Chapter 5 (commencing with Section 1010) of Title 14 of Part 3, or, if he or she is a party, to his or her attorney of record ...
- (2) Not less than 10 days prior to the date for production specified in the subpoena duces tecum, plus the additional time provided by Section 1013 if service is by mail.
- (3) At least five days prior to service upon the custodian of the records, plus the additional time provided by Section 1013 if service is by mail.

The “Notice to Consumer” requirement expressly applies to non-parties. (See Code Civ. Proc., § 1985.3, subd. (g) [“Any other consumer or nonparty whose personal records are sought” may serve objections; see also § 1985.3(k) [“Failure to comply with this section shall be sufficient basis for the witness to refuse to produce the personal records sought by a subpoena duces tecum.”])] Thus, failure to serve Jiman Zhu and Lihui Bai with a Notice to Consumer constitutes a statutory basis for Citibank to refuse to produce the records.

Here, the subpoenas do not just incidentally mention the two parents (Jiman Zhu and Lihui Bai). Rather, they expressly seek the Parents’ own banking records across several very broad categories. That is, the subpoenas expressly target the Parents’ financial records. Thus, Code of Civil Procedure section 1985.3, subdivision (g) requires service upon them of a Notice to Consumer.

Had there been no procedural defects, the court would, at a minimum, have had to narrow the subpoenas’ scope, because they are overbroad. The motion is quash is granted, for the reasons stated above. The court, however, comments on defendants’ overbreadth/privacy objections so that the parties can have meaningful meet-and-confer and, hopefully, avoid another motion. The court reminds the parties that the Civil Commissioner conducts informal discovery conferences, which conferences this court encourages when parties cannot agree on the scope of discovery.

Defendants object to the subpoenas as being overbroad and as violating financial privacy rights. The court agrees and, if deciding the propriety of the requests would modify the subpoenas to address their overbreadth—that is, to limit them to seeking documents that are reasonably related to tracing the parents’ alleged transfers and the assets allegedly acquired with those funds.

The California Constitution expressly grants Californians a right to privacy. (Cal. Const., art. I, § 1.) “Protection of informational privacy is the provision’s central concern.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 552 (*Williams*).) There is a legally recognized privacy interest in a person’s financial affairs. (*Fortunato v. Super. Ct.* (2003) 114 Cal.App.4th 475, 480; *Valley Bank*

of Nevada v. Super. Ct (1975) 15 Cal.3d 652, 656-657 (*Valley Bank*).) The right of privacy, however, is not absolute (*Valley Bank, supra*, at p. 657.) The court must balance the right of privacy against the need for discovery. (*Williams, supra* at p. 552.) In general, the Supreme Court has established the following framework for evaluating potential invasions of privacy: the party asserting the privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy given the circumstances, and a threatened intrusion that is serious. (*Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1, 35.) The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives, or protective measures. A court must then balance these competing considerations. (*Id.* at pp. 37-40.)

When a discovery request implicates the constitutional right to privacy, the party seeking discovery of the private matter must do more than satisfy the relevance standard of Code Civ. Proc. § 2017.010. (*Williams, supra*, 3 Cal.5th at p. 556.) The more sensitive the nature of the personal information that is sought to be discovered, the more substantial the showing of the need for the discovery that will be required before disclosure will be permitted.

Here, given the fraudulent transfer allegations, plaintiff has legitimate and substantial discovery need for documents that may show fraudulent transfers, and therefore, the asserted privacy rights, on their own, do not justify quashing the subpoenas in their entirety. But the subpoenas here are extremely broad, to the point that they implicate substantial privacy rights. Viewed collectively, the six categories of requested documents appear to constitute, as Defendants characterize them, a “financial audit.” That is, they seek all documents pertaining to any account, loan, wire transfer, or correspondence, involving the two named Defendants, the two Parents, and/or any of twelve (12) separate identified entities, over a nine (9) year period. The subpoenas are broader than necessary to accomplish the stated purpose. For example, the two Parents could have Citibank accounts from which no funds were ever transferred to the two Defendants or to any other entity, and thus, would not reasonably be discoverable—yet as currently drafted, the subpoenas would require production of all documents pertaining to such an account. This type of “kitchen sink,” i.e., produce everything in your possession approach is prohibited. (*Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 222.)

The focus must solely be on financial records capable of tracing the alleged transfers and acquisitions, rather than seeking all documents of any kind relating to any account associated with any of the four named individuals and/or the twelve (12) identified entities.

Conclusion. The motion to quash the subpoenas to Citibank, N.A. is GRANTED.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for defendants shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the

ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 6

24-CIV-06424

MARTA BOGACZYNSKA VS. SCOTT TURNER, ET AL.

MARTA BOGACZYNSKA
SCOTT TURNER

AARON P MINNIS
SHANNON R CLAWSON

MOTION TO COMPEL PLAINTIFF'S CONTINUED DEPOSITION AND FOR SANCTIONS

TENTATIVE RULING:

This as an employment case. Plaintiff Marta Bogaczynska has sued Defendants Pliant Therapeutics, Inc. and Scott Turner for sexual harassment, hostile work environment, sexual battery, and battery. Plaintiff has further sued Defendant Pliant for failure to prevent harassment.

Here, Defendant Turner seeks an order compelling the continued deposition of Plaintiff. Defendant further requests monetary, issue, evidentiary, and terminating sanctions against Plaintiff.

This issue before the Court is strikingly similar to the issue brought before the Court on a previous motion to compel Plaintiff's continued deposition, filed by Defendant Pliant. In the order on that motion, this Court noted:

This is the type of motion that never should have to been brought before the Court because good faith meet-and-confer negotiations should have resolved the issue. Based upon the Court's review of the facts, the issue of the timing of Plaintiff's deposition occurred because the parties did not talk about their expectations for the deposition beforehand and then did not meaningfully work for solutions after the deposition could not be completed in one day.

(Fernandez Decl., ¶ 3, Ex. 1, Order dated December 27, 2025.) The Court expresses the same sentiment here, eight months later, as the present motion reveals a similar failure of the parties to work together to resolve the routine issue of continuing a deposition that was not completed on the date noticed.

The Court's previous order further stated that "while it is presumably unlikely that Plaintiff's deposition will take more than one [more] day, *the parties shall nonetheless establish an agreeable plan to continue Plaintiff's deposition, should that be necessary.*" (*Ibid.*, emphasis added.) It appears to the Court that no such agreeable plan was established.

Defendant's motion to compel is GRANTED, with the condition that Defendant Turner's examination of Plaintiff not exceed eight (8) hours, excluding breaks. The Court imposes ***no requirement*** that the deposition be completed on one day or that it be continued on consecutive days.
